

Appendix 4: Terms and Conditions of Sale and Delivery

These General Terms and Conditions of Sale and Delivery (“the Terms and Conditions”) apply to all deliveries of products and/or services (“Products”) from Timan A/S (hereinafter referred to as “Timan”) to any customer (“Buyer”). The Terms and Conditions shall be mutually binding on Timan and the Buyer unless otherwise expressly agreed. Timan shall not be bound by any terms proposed by the Buyer that deviate from these Terms and Conditions, unless such terms have been agreed in writing between Timan and the Buyer. Timan shall likewise not be bound by any terms proposed by the Buyer even if Timan has not objected to such terms.

1. For any delivery from Timan, the below terms and conditions of sale and delivery shall apply unless otherwise agreed in writing between the parties.
2. **Quotations:** Quotations from Timan lapse after 8 days unless otherwise stated. Timan reserves the right to prior sale.
3. **Materials:** Timan assumes no responsibility for any errors or information in written material regarding products/components provided by Timan’s suppliers.
4. **Prices:** All sales are made at prices applicable on the delivery date. This means that increases in duties, price changes from Timan’s suppliers, exchange rate fluctuations exceeding 3%, devaluations, etc., relating to the agreed product entitle Timan to increase the price accordingly. If prices have been confirmed in writing, the above shall only apply by further agreement.
5. **Payment terms:** The purchase price, including all duties and costs, shall be paid in cash upon delivery to Timan unless otherwise agreed.
6. **Delivery:** Delivery shall take place in accordance with the delivery terms agreed between the parties in accordance with Incoterms® 2020, unless otherwise agreed in writing.
If no specific delivery term has been agreed, delivery of machines shall be made in accordance with FCA (Free Carrier), Incoterms® 2020, while delivery of spare parts and other parcel shipments shall be made in accordance with CPT (Carriage Paid To), Incoterms® 2020.
The Buyer may choose another delivery term, including EXW (Ex Works), Incoterms® 2020, provided this is agreed in writing between the parties.
Delivery is deemed to have taken place, and the risk passes to the Buyer, in accordance with the agreed delivery term.
7. **Delivery time, delays:** Delivery times stated by Timan are indicative only unless otherwise confirmed in writing. The final delivery time is only binding when confirmed in writing by Timan.
If delivery is delayed due to circumstances constituting force majeure under clause 8 or due to the Buyer’s circumstances, the delivery time shall be extended to the extent deemed reasonable.
Delay does not entitle the Buyer to cancel the purchase or claim compensation unless required by mandatory law.
8. **Exemption from liability (force majeure):** Timan shall not be liable for failure to fulfill its obligations if this is due to circumstances beyond Timan’s control which Timan could not reasonably have foreseen or avoided at the time of entering into the agreement.
Such circumstances include, but are not limited to: operational disruptions, IT breakdowns, labor disputes, fire, war, mobilization, natural disasters, pandemics, government intervention, currency restrictions, transport difficulties, shortages of labor or materials, as well as delays or defects from subcontractors.
In such cases, Timan’s obligations are suspended for as long as the impediment persists.
The Buyer is not entitled to cancel the purchase, claim damages, or exercise other remedies for breach as a result of such circumstances.
9. **Product liability:** The Seller assumes no liability for personal injury or damage to property beyond what follows from mandatory legislation applicable to the Seller in Denmark, and only to the extent required by such rules. The Seller is not liable for indirect losses, including consequential damages, loss of operation, loss of profit, or other financial consequential losses.
The Seller assumes no liability for damage to the Buyer’s property arising in connection with the Buyer’s commercial use of the purchased goods.
To the extent the Seller may be held liable towards third parties in connection with the Buyer’s use or resale of the goods, the Buyer shall indemnify the Seller to the extent such liability exceeds the limitations set out above.
The liability period is limited to 1 year from the time of delivery. The Seller’s total liability for product damage shall in no case exceed the coverage amount of the Seller’s product liability insurance.

The Buyer is obliged to submit to legal proceedings before the same court that handles claims against the Seller in connection with the sold products. However, the internal relationship between Seller and Buyer shall be settled in accordance with clause 16 if agreement cannot be reached.

- 10. Retention of title:** Ownership of the sold items remains with Timan or the party to whom Timan has assigned its rights until the full purchase price, including interest and costs, has been paid. The retention of title also includes items incorporated into or subsequently delivered for completion, repair, or modification of the sold goods. Until full payment is made, the Buyer is not entitled to sell, pledge, lease, or otherwise legally dispose of the goods. For sales to Germany, retention of title also applies to the new item into which the sold item is processed or becomes a component, or to claims for payment upon resale – meaning Timan applies both simple retention of title (Eigentumsvorbehalt) and extended retention of title (erweiterter Eigentumsvorbehalt). The retention of title also covers previous unpaid deliveries from Timan to the Buyer.
- 11. Interest:** If any payment or cost is not paid when due, default interest of 2% per commenced month shall be charged on the overdue amount.
- 12. Insurance:** Until the full purchase price, including interest and costs, has been paid, the Buyer is obliged to take out standard fire and theft insurance for the purchased goods.
The Buyer bears the risk for the goods in accordance with the agreed delivery term.
- 13. Service and complaints:** For new machines, Timan will replace, for 12 months from the date of commissioning or until the number of operating hours stated in the product manual is reached (whichever occurs first), parts that are defective due to material, assembly, or manufacturing defects.
The date of commissioning is based on the warranty registration submitted to Timan. If no warranty registration is submitted, the commissioning date is calculated from the delivery date.
Replacement does not apply in cases of normal wear and tear, misuse, failure to follow instructions or service plans in the product manual, or use of non-original spare parts.
For the assessment of a claim, the Buyer must, upon request from Timan, provide documentation of completed service work in the form of invoices and a completed service log. If such documentation cannot be provided, Timan is entitled to reject the claim without further justification.
Labor costs and costs related to replacement of approved claims are only covered by separate agreement.
No compensation is provided for operational loss or other indirect losses related to defects. For electrical and hydraulic systems, tires, and hoses, the respective manufacturers' service and warranty terms apply.
Complaint work must be carried out in accordance with Timan's complaint procedures.
- 14. Complaint procedure:** Before starting any complaint work, Timan must be contacted either by phone or by submitting a partially completed complaint report.
After the inquiry or receipt of the report, Timan will issue a complaint number.
Timan must always be given the opportunity to provide instructions on how the complaint work is to be carried out.
After issuance of the complaint number, a final complaint report must be submitted to Timan within 8 days.
- 15. Liability:** In addition to what follows from clause 9, Timan shall have no liability for indirect losses, including loss of operation, loss of earnings, and other financial consequential losses.
- 16. Governing law and jurisdiction:** These general terms and conditions of sale and delivery shall apply to any dispute between the parties. If a matter is not covered by these terms, the Danish Sale of Goods Act (Act No. 120 of April 6, 1906, as subsequently amended) and Danish law in general shall apply.
Disputes arising out of the purchase agreement or these terms and conditions may, at the Seller's discretion, be brought before the courts or be finally settled by arbitration in accordance with Act No. 181 of May 24, 1972 on arbitration.

Timan A/S

Navn:

Titel:

Dato:

Underskrift _____

Navn:

Titel:

Dato:

Underskrift _____

Timan A/S - Osvald Pedersensvej 2A-D - 6980 Tim

